7 costly mistakes landowners make before subdividing or applying for a DA — and how to avoid them

A free guide by Mishti Saxena (Mish), Urban Designer, Sydney — for NSW landowners who want an honest first take before they spend on design work and consultants.

This guide is general information only. It does not promise an outcome, a yield, or an approval for any particular site — your site gets its answer in a free Quick Zoning Check.

1. Designing before checking the controls

The most expensive drawings are the ones for a building the LEP was never going to allow — too tall, too much floor space, or a use that is not permitted in the zone at all.

Do this instead: Check zoning, height, FSR and minimum lot size before any design work.

2. Judging a subdivision by land size alone

Subdivision turns on minimum lot size, lot width and frontage, access, slope, services and lot shape — not on area alone. Plenty of large blocks cannot split; some smaller ones can.

Do this instead: Test the actual controls for your lot — minimum lot size and width first — before assuming a yield.

3. Discovering flooding, bushfire or heritage late

Constraints do not stop every project — but finding out about a flood study, a bushfire assessment or a heritage listing after you have designed or lodged can mean redesigns, extra consultants and months of delay. Riparian and buffer zones, easements and servicing can matter just as much.

Do this instead: Flag the obvious constraints at the very start, and let

them shape the idea while changing it is still cheap.

4. Forgetting access, parking and services

A layout can comply on paper and still fail in practice: no workable driveway, no room for parking and turning, stormwater with nowhere to go, or lots that cannot be serviced.

Do this instead: Think about access, parking, stormwater and services at concept stage, alongside the buildings.

5. Picking the wrong approval pathway

Lodging a DA for something that could have been a CDC wastes months. Assuming a CDC for something that was never going to comply wastes fees.

Do this instead: Work out early whether your project is exempt development, complying development or a DA — and design to the pathway you are actually on.

6. Reading the LEP and stopping there

The local LEP is only one layer. State policies (SEPPs) sit over the top, and the local DCP adds detailed controls on top of both. Checking one layer and missing the others gives you the wrong answer with confidence.

Do this instead: Check all three layers — SEPPs, LEP and DCP — together.

7. Spending in the wrong order

Full design work, surveys and a shelf of consultant reports — all commissioned before anyone has tested whether the idea stacks up. If the feasibility fails, almost none of that spend can be reused.

Do this instead: Sequence the spend: free check first, then feasibility, then concept, then the consultants a DA actually needs.

Your next step is free.

Book a free 20–30 minute chat or ask for a free Quick Zoning Check — zoning, key LEP controls (height, FSR, minimum lot size) and obvious constraints for your property.

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The information in this guide is general information only. It is not legal, planning or building advice. Planning controls (LEP, DCP, SEPP) change over time, so please check the current controls with your local council before you rely on anything here. A zoning check does not guarantee an approval, a yield, or any particular outcome for your land. Mishti Saxena holds a Bachelor of Architecture and a Master of Urbanism (Urban Design), and works as an Urban Designer at Land Specialists Pty Ltd, Sydney.